IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT – II)

Item No. 202
CA-(CAA)-92/ND/2022

IN THE MATTER OF:
Religare Broking Ltd. and Religare Digital Solutions Ltd. ... **Applicant/Petitioner**

Under Section: 230-232

Order delivered on 16.06.2023

CORAM:
SH. ASHOK KUMAR BHARDWAJ
HON'BLE MEMBER (J)

SH. L. N. GUPTA
HON'BLE MEMBER (T)

PRESENT:
For the Applicant : Mr. Sunil Fernodes, Ms. Diksha Dodu, Mr. Rishabh Sachdeva, Advs, Mr. Abhishek Nohta, practising CA

ORDER

Indubitably, in the captioned application, the Security and Exchange Board of India (SEBI) could issue notice dated 06.10.2022 to Applicant No. 1 i.e., Religare Securities Limited calling upon it to show cause as to why the action as recommended by DA, including passing of appropriate direction should not be taken against it in terms of Regulation 27 of the SEBI (Intermediaries) Regulation, 2008, as the Competent Authority could consider appropriate.

In the wake, we deem it appropriate to seek the comments of SEBI and RD qua the ramification of the said show cause notice on the fate of the present petition. Let the notice be issued to SEBI as also to RD returnable on 06.07.2023. Dasti. Ld. Counsel for the Applicants would also enclose with the notice a copy of the company application as also the affidavit filed in compliance with the order dated 02.06.2023. It is made clear that if the response is not received from the SEBI/RD before the next date of hearing an inference will be drawn that the RD and SEBI have nothing to say in the matter.

The RD would also examine the "Scheme" where a portion of the business of the transferor company is being proposed to be sold by way of a "slump sale" to the transferee company. RD is directed to furnish its comments with regard to this proposition of the Scheme to be taken under Section 230-232 of the Companies Act, 2013. List on 13.07.2023.

-Sd-
(L. N. GUPTA)
MEMBER (T)

-Sd-
(ASHOK KUMAR BHARDWAJ)
MEMBER (J)

UPASANA